

Court No. - 32

Case :- WRIT - C No. - 31836 of 2018

Petitioner :- Jogendra Singh

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Ajay Kumar

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition has been filed, inter alia, for the following relief:

"a. Issue a writ, order or direction in the nature of Mandamus commanding the Respondents to decide the Petitioner's representation, generate a correct Electricity Bill in respect of his Ata Chakki Electric Supply Metre for the period of last four years when Petitioner and his family had locked their house and closed down the Ata Chakki and no electric energy was consumed by the Petitioner, adjust the amount already deposited by Petitioner after returning from medical treatment, for the period, when the electric energy was not consumed by him and after adjusting the amount already deposited by the Petitioner, fix easy instalments and restore the electric supply connection on Petitioner's metre."

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005. We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority along with a certified copy of this order enclosing therewith a copy of the writ petition and its annexures for redressal of his grievance within 10 days from today, his application may be considered and decided by the said authority in accordance with law within 15 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 19.9.2018

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